Related Article/Schedule : 21

Supreme Court Judgement: It held that active euthanasia and assisted death are not permissible and hence, continue to be illegal, whereas passive euthanasia is permissible with certain conditions, safeguards and procedure laid down by the court: (i) A decision has to be taken to discontinue life support either by the parents or the spouse or other close relatives, or in the absence of any of them, such a decision can be taken even by a person acting as a next friend or by the doctors attending the patient; (ii) Even if a decision is taken by the near relatives or doctors or next friend to withdraw life support, such a decision requires approval from the High Court concerned; (iii) When such an application is filed, the Chief Justice of the High Court should forthwith constitute a Bench of at least two Judges who should decide to grant approval or not. Before doing so the Bench should seek the opinion of a committee of three reputed doctors to be nominated by the Bench; and (iv) The High Court Bench shall also issue notice to the State and close relatives e.g. parents, spouse, brothers/sisters etc. of the patient, and in their absence his/her next friend, and supply a copy of the report of the doctor's committee to them. After hearing them, the High Court bench should give its verdict.

People's Union for Civil Liberties Case (2013)

Name of the Case : People's Union for Civil Liberties vs. Union of India

Year of Judgement : 2013

Popular Name : NOTA case

Related Topic/Issue : Electoral reforms

Related Article/Schedule : 14, 19 & 21

Supreme Court Judgement: It held that Rules 41(2) & (3) and 49-O of the Conduct of Election Rules, 1961 (which recognize the right of a voter not to vote) are ultra-vires Section 128 of the Representation of the People Act, 1951 and Article 19(1)(a) of the Constitution to the extent they violate secrecy of voting. Therefore, it directed the Election Commission to provide necessary provision in the ballot papers/EVMs and another button called "None of the Above" (NOTA) may be provided in EVMs so that the voters, who come to the polling booth and decide not to vote for any of the candidates in the fray, are able to exercise their right not to vote while maintaining their right of secrecy. The court made the following observations: (i) In order to protect the right in terms of Section 79(d) and Rule 49-O, viz., "right not to vote", this court is competent to issue directions that secrecy of a voter who decides not to cast his vote has to be protected in the same manner as the Statute has protected the right of a voter who decides to cast his vote in favour of a candidate; (ii) This court is also justified in giving such directions in order to give effect to the right of expression under Article 19(1)(a) and to avoid any discrimination by directing the Election Commission to provide NOTA button in the EVMs; (iii) Article 19 guarantees all individuals the right to speak, criticize, and disagree on a particular issue. It stands on the spirit of tolerance and allows people to have diverse views, ideas and ideologies. Not allowing a person to cast vote negatively defeats the very freedom of expression and the right ensured in Article 21 i.e., the right to liberty; and (iv) Protection of elector's identity and affording secrecy is integral to free and fair elections and an arbitrary distinction between the voter who casts his vote and the voter who does not cast his vote is violative of Article 14.